

		no evidence that Plaintiff requested repair logs, error logs, or emails documenting the corruption event and no evidence proffered that Defendant failed to provide such. There is also no evidence a forensic expert reviewed the relevant system(s) and documentation and concluded the file is unrestorable. The court notes that whether and to the extent the video file can be restored affects the level of prejudice Plaintiff may suffer. Further, assuming the video file is corrupted, Plaintiff fails to show that the corrupted evidence had a substantial probability of damaging Plaintiff's ability to establish an essential element of his claim. (<i>Williams v. Russ</i>, 167 Cal.App.4th at 1227.) No evidence is presented suggesting the video would have shown a failure to inspect or maintain the area or would have contained other unfavorable evidence. Again, the court cannot impose sanctions as punishment and Plaintiff cannot obtain more than he would have gotten had the evidence been produced in a non-corrupted form. (See e.g, <i>Doppes</i>, 174 Cal.App.4th at 992.) As for the request for monetary sanctions for attorney fees and costs in bringing this motion, Plaintiff does not request or support any particular amount of monetary sanctions. Code of Civil Procedure section 2023.040 requires any request for sanction be "accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." Due process also requires notice of the amount being requested. In sum, the court DENIES Plaintiff's motion for sanctions. Defendant to give notice.
11	Vo vs. Mercedes-Benz USA, LLC	<u>Motion to Compel Arbitration</u> The court GRANTS Defendant MERCEDES-BENZ USA, LLC's ("Moving Defendant") motion to compel Plaintiff PHAT TAN VO to arbitrate his claims against Defendant Mercedes-Benz and staying this action pending completion of arbitration.